

25STCV25686 25STCV25686

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV25686 Hearing Date: July 1, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July 1, 2026 TRIAL DATE: Not
set

CASE: Anna Pink v. Joe Contreras, et al.

CASE NO.: 25STCV25686

MOTIONS

TO COMPEL RESPONSES TO CATERPILLAR INC.'S FORM INTERROGATORIES, SPECIAL
INTERROGATORIES, REQUESTS FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS

MOVING PARTY: Defendant Caterpillar, Inc.

RESPONDING PARTY:

I. INTRODUCTION

On June 3, 2026, Defendant, Caterpillar, Inc.,
filed these motions to compel responses from Plaintiff,
Anna Pink, to Defendant's first set of Form Interrogatories, Special
Interrogatories, and Requests for Production of Documents. Defendant also
seeks sanctions against Plaintiff.

The

motions are unopposed.

II. LEGAL STANDARD

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If a party to whom interrogatories and inspection demands were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections.¿(Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a).)¿A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion.¿(See Code Civ. Proc., §§ 2030.290(b), 2031.300(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that “meet and confer” requirement “did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party’s failure to respond ‘within the statutorily permitted time’”].)¿¿¿¿¿¿¿¿

Monetary Sanctions¿

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery.¿ (Code Civ. Proc., § 2023.010.)¿¿¿¿¿

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.¿¿¿

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If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court "shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290(c); 2031.300(c).) With respect to untimely responses to admissions requests, sanctions are mandatory. (Code Civ. Proc., § 2033.280(a).)

III. DISCUSSION

Defendant moves the court for an order compelling Plaintiff to provide responses to Defendant's first set of Form Interrogatories, Special Interrogatories, and Requests for Production of Documents.عععع

It is undisputed that Defendant properly served Plaintiff with the at-issue discovery requests on April 9, 2026.ع (See Guest Decls., ¶ 2, Exs. A.) To date, Plaintiff has not served responses.ع (Guest Decls., ¶¶ 3.) Accordingly, all objections to the discovery requests are waived. Defendant is entitled to an order compelling responses to the interrogatories and inspection demands.عع

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عMonetary Sanctionsعع

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Defendant request sanctions against Plaintiff.ع Given the court's ruling, sanctions are warranted.ع Accordingly, sanctions are imposed against Plaintiff in the total requested amount of \$1,145.50.ععع

IV. CONCLUSION

The unopposed motions are GRANTED. Plaintiff is ordered to provide verified, objection-free responses to Defendant's first set of Form Interrogatories, Special Interrogatories, Requests for Production of Documents within 30 days of this order.ع

Defendant's request for sanctions is GRANTED. Plaintiff
is ordered to pay sanctions in the sum of \$1,145.50 within 30 days of the date
of this order.

Defendant to give notice, unless waived.

Dated: July 1, 2026

Brock T. Hammond

Judge of the Superior Court